

- ii. disputes the validity or existence of a Forward Contract or defaults, or communicates its intent to default, on any of its obligations described in this Agreement, particularly those described in clause 3;
 - iii. is insolvent or a receiver or administrator is appointed with respect to some or all of its assets or it enters into liquidation; or
 - iv. ceases or threatens to cease to carry on business or sells all, or substantially all of the assets of the business, Convera may, without notice, immediately terminate the relevant Forward Contract and/or any other outstanding Forward Contract agreed to between the Parties without any liability to Convera and/or take any other steps Convera deems appropriate (including any actions contemplated under clause 3.2) to mitigate the potential loss(es) caused by the Client's failure to honour its contractual obligations under the Forward Contract
- b) In the event of such termination, the Client agrees to pay to Convera on demand within five (5) business days the amount of any and all losses and expenses incurred by Convera in connection with the termination and unwinding of the Forward Contract.
- c) Where a Forward Contract has been terminated, the Client agrees that Convera sole liability to the Client will be to return any amounts the Client actually paid to and received by Convera that remain after deducting all amounts owed to the Convera. Except as contemplated in this clause 3.6, the Client understands that a Forward Contract, once agreed and entered into, cannot be terminated.

3.7 Disclosure pursuant to Regulation 18A of the Securities and Futures (Licensing and Conduct of Business) Regulations of Singapore ("Regulations"). The following disclosure to the Client is required for the purposes of Convera FS Singapore's compliance with Regulation 18A of the Regulations, which the Client acknowledges:

- a) any Prepayment received from the Client by Convera FS Singapore will be held on Convera FS Singapore's behalf by a bank licensed under the Banking Act, Chapter 19 of Singapore (the "**Relevant Bank**"), in a trust account pursuant to Regulation 17 of the Regulations (the "**Trust Account**");
- b) any Prepayment received from the Client by Convera will be deposited with, and commingled with, moneys of other clients of Convera FS Singapore. The Client further understands that it may be exposed to the losses of other clients of Convera FS Singapore. For instance, such Prepayment could inadvertently be withdrawn to meet the obligations of other clients of Convera FS Singapore. Also, if for any reason the balance in the Trust Account does not reconcile with the quantity that Convera FS Singapore or the Relevant Bank are required to hold resulting in a shortfall, the Client may have to share in that shortfall and may not enjoy the full entitlement of having the Prepayment applied to satisfy the Client's total payment obligation owed to Convera in accordance with clause 3.2(c). Notwithstanding the foregoing, Convera FS Singapore has put in place appropriate procedures to mitigate the likelihood of such losses; and
- c) if the Relevant Bank becomes insolvent before the Prepayment by the Client is applied to satisfy the Client's total payment obligation owed to Convera FS Singapore in accordance with clause 3.2(c), Convera FS Singapore may be delayed or prevented from applying such Prepayment to satisfy the Client's total payment obligation owed to Convera, and in the worst case scenario, the Client may lose part or all of the Prepayment such that a lesser part or no part (as the case may be) of the Client's total payment obligation is satisfied with respect to the relevant Forward Contract on the Maturity Date (Delivery Date/Value Date) or on the date of any final Draw Down pursuant to clause 3.2(c).

4. Online Payment System: License Agreement and Terms of Use

4.1 Online Payment System License. If the Client uses the Services, the Client agrees to abide by this Agreement. In consideration of the Client's agreement to be so bound, and upon Client's request to obtain access to the Online Payment System, the Client will be granted, for so long as this Agreement remains in effect, not to exceed twelve (12) months of continued non-use of the Services by the Client, a non-exclusive, non-transferable, and non-sublicensable licence to use the Online Payment System for the sole purpose of facilitating the Client's use of the Services.

4.2 Online Payment System Restrictions. The Client agrees that the Online Payment System is and will remain the